

Key Jurisprudence from El Salvador's Supreme Court (Sala de lo Penal & Sala de lo Civil/Familia)

Criminal Law Landmark Cases

Accomplice vs. Accessory in Aggravated Homicide – *Sentencia 519-C-2020 (Sala de lo Penal, 2021)*

Court & Year: Supreme Court of Justice, Sala de lo Penal (Criminal Chamber), 2021.

Facts: A group of gang members brutally murdered a victim, dismembering and burying the body ¹ ². One co-defendant argued he only helped after the killing (bringing tools, dismembering the corpse) and thus should be treated as an *encubridor* (accessory after the fact) rather than an accomplice to homicide.

Legal Issue: The distinction between an *accomplice* to aggravated homicide and a mere *accessory* (*encubridor*) – i.e., whether aiding in body disposal was part of the “criminal plan” or a separate post-crime act.

Decision: The Sala de lo Penal upheld the conviction as an **accomplice** to aggravated homicide, refusing to downgrade it to accessory ³. The Court found that the defendant's actions were **planned and coordinated** with the murder: he arrived with tools at the exact moment the killers intended to dismember and hide the body, evidencing prior agreement ⁴ ³. Because his assistance was **within the same criminal plan** as the killing, it was *incompatible* to treat it as mere post-crime concealment ³.

Reasoning: Under Salvadoran law, an *encubridor* acts with no prior arrangement in the core crime, whereas an accomplice (or co-author) knowingly furthers the crime's execution ⁵. Here, the factual circumstances – bringing a shovel and a knife to dismember the victim and actively participating in that gruesome plan – showed a **non-indispensable cooperation in the homicide itself**, not a detached act after the fact ³. The Court noted that an accessory has “no role in the original criminal plan,” which clearly was not the case here ³. It therefore **rejected the defense's appeal** and confirmed the second-instance judgment.

Implications: This ruling clarified the boundary between *accessory after the fact* and *co-perpetrator/accomplice* in violent crimes. It established that if a person's conduct is **integral to the execution or completion of the crime** (even if some acts occur after the victim's death), they will be treated as a participant in the principal offense rather than a lesser accessory ³. The case is frequently cited to ensure that **all participants in gang-organized murders** are held appropriately accountable and cannot evade harsher penalties by portraying themselves as passive accessories. Notably, this same decision also addressed the defendant's conviction for **illicit group membership** (*agrupaciones ilícitas*), affirming that his sustained gang involvement (coordinating crimes with other members) met the legal definition of participation in a criminal organization ⁶ ⁷. The Court applied the minimum 3-year prison term under Penal Code Art. 345 for being a gang member, and discussed the retroactive application of a milder 2010 version of that law since the conduct pre-dated a 2016 amendment ⁸ ⁹. This aspect of the case underscored that **evidence of ongoing communication and coordination with gang leaders** can prove a defendant's status as a full member of an illicit association (not merely a one-time collaborator) ⁶ ⁷.

Defining Femicidio (Gender-Motivated Killing) – *Sentencia 626-C-2018 (Sala de lo Penal, 2019)*

Court & Year: Supreme Court, Sala de lo Penal, 2019 (decision dated 20 August 2019 ¹⁰).

Facts: A man attacked his former partner in a public minibus, stabbing her multiple times after she pleaded, “*pensá en el niño*” (think of our child) ¹¹ ¹². The victim survived with injuries. At trial he was convicted of **attempted aggravated femicide** (attempted gender-based killing) under El Salvador’s *Ley Especial Integral para una Vida Libre de Violencia para las Mujeres* (LEIV). However, the appellate court (Cámara) **reduced the conviction to mere “lesiones” (battery)**, concluding that there was no proven intent to kill or gender-based motive (misogyny) ¹³ ¹⁴. Prosecutors challenged this reclassification, arguing the attack was clearly an attempted femicide motivated by contempt for the victim as a woman ¹⁵ ¹⁶.

Legal Issues: The case examined **what evidence is required to distinguish femicide (gender-motivated homicide) from ordinary assault**, specifically the role of *misogynistic intent* and the threshold for an attempted femicide. It also addressed appellate courts’ power to recharacterize offenses.

Decision: The Sala de lo Penal **overturned the appellate court** and reinstated the conviction for *attempted aggravated femicide*, along with the original 15-year prison sentence ¹⁷ ¹⁸. The Court held the Cámara had erred in law by misapplying the definition of femicide (Art. 45–46 LEIV) and downgrading the crime improperly ¹⁷.

Reasoning: The judgment elaborated on the legal definition of “**feminicidio**”, which requires the killing of a woman “*mediando motivos de odio o menosprecio por su condición de mujer*” (motivated by hatred or disdain for her being a woman) ¹⁹. One qualifying circumstance is when the perpetrator exploits unequal power relations based on gender (e.g., domestic or intimate partner contexts) ²⁰ ²¹. The Court noted that *misogyny* – an extreme contempt for women – is a key subjective element that can be implicit or explicit ²² ²³. In this case, several facts signaled a femicidal intent: the assailant was the victim’s **former intimate partner**, they had a child together, and he expressed rage at her for taking legal action against him (“*usted me tiene bien topado en los juzgados*” – “you’ve really had me tied up in court”) ²⁴ ¹². During the attack, he ignored her plea referencing their child and attempted to stab vital areas (head, chest) before bystanders intervened ¹¹ ¹². The Supreme Court found that these facts evinced a *gender-based power dynamic and intent to kill*, which the trial court had rightly recognized ¹⁶ ¹⁵. The appellate panel’s failure to “visualize the misogyny” (in the prosecutor’s words) was a misapplication of the LEIV ¹⁶. The Sala de lo Penal emphasized that **evidence of prior abuse, threats, or domination** can help prove the requisite hate or contempt toward the victim’s gender ²⁵ ²⁶. Here, the victim’s testimony and context showed a history of domestic violence and controlling behavior, satisfying the law’s standard.

Implications: This ruling is a **landmark in prosecuting gender-based violence** in El Salvador. It clarified that when an aggressor’s conduct and relationship to the victim indicate a pattern of domination or contempt for the woman, courts should treat the offense as *feminicidio* (or attempted femicide) rather than a lesser injury crime ²² ²⁷. The case reinforced the **LEIV’s purpose**: to recognize killings of women by abusive partners as a distinct, aggravated crime. It also signaled to lower courts that *misogynistic motive* can be proven through contextual and circumstantial evidence (such as prior complaints, power imbalance, and the nature of the attack) ²⁵ ²⁷. Post-2019, legal scholars and advocacy groups have noted this decision’s importance in ensuring that **attempts on women’s lives are not downplayed** merely because the victim survives or because direct evidence of motive is scarce – judges must infer intent from the pattern of violence ²² ²⁶. The full Spanish text of this influential decision is available through the Corte Suprema’s documentation center ¹⁷ ¹⁸.

Due Process and Right to a Competent Tribunal – *Sentencia 480-C-2020 (Sala de lo Penal, 2022)*

Court & Year: Supreme Court, Sala de lo Penal, 2022 (decision of 25 Feb 2022).

Facts: This case arose from a prosecution for *usurpación de inmuebles* (unlawful squatting/occupation of property). The trial was conducted under the Criminal Procedure Code of 1998, which provides that a final judgment by a trial court in such cases should be appealed via a **cassation to the Supreme Court**. However, due to a procedural mix-up, the parties instead filed a regular appeal to a regional Cámara de lo Penal (Third Section, San Vicente). That appellate court, **lacking jurisdiction**, nonetheless took the case *twice* – first modifying the trial judgment and ordering a retrial, and then later deciding the retrial's outcome^{28 29}. In other words, a non-competent tribunal handled what should have been a Supreme Court cassation. The defense eventually brought the issue to the Supreme Court.

Legal Issue: Whether the defendant's **due process rights** were violated by having his case decided by a tribunal that was *not legally competent* under the applicable procedural law. This raised the fundamental guarantee of being judged by the “**juez competente, predeterminado por la ley**” (a judge predetermined by law – an element of a fair trial). It also tested the scope of **absolute nullity** in criminal procedure when jurisdictional rules are breached.

Decision: The Sala de lo Penal found a **grave violation of due process** and declared an “**nulidad absoluta**” (absolute nullity) of the appellate chamber's actions^{30 31}. It **annulled** the Cámara's 2018 and 2020 judgments as well as the intermediate re-trial judgment that stemmed from the Cámara's improper order^{29 32}. The Supreme Court **reinstated the original trial court's verdict** from May 2018 (which had been issued by a properly competent judge)^{33 32}. Importantly, it then reset procedure to the point after that 2018 first-instance decision, effectively giving the parties a fresh chance to file the correct recourse (a cassation) “conforme a derecho” (according to law)^{34 35}.

Reasoning: The Court underscored that the **right to an impartial, legally competent court** is a pillar of due process, citing that a person has a human right to appeal to “*un juez o tribunal distinto y de superior jerarquía*” (a higher, different tribunal) as the law prescribes³⁶. In this case, the law predetermines that a *tribunal de sentencia's* judgment in a less-serious offense must be reviewed via cassation by the Supreme Court – *not* by an ordinary appeals chamber^{37 29}. The Third Section Cámara had **twice overstepped its competence** by entertaining an appeal and even ordering a retrial, actions for which it had no legal authority^{37 32}. This was not a mere technicality but a fundamental error: the judges who decided the appeal were not the *predetermined* cassation judges, so the proceedings were vitiated at their core. The Sala de lo Penal invoked Art. 224(6) of the (old) Criminal Procedure Code, which treats acting “**sin competencia legal**” as an absolute nullity that can be declared at any stage^{38 30}. Because the error was identical in both the first and second appellate interventions, **all those outcomes were nullified**^{29 32}. The Court maintained the initial trial judgment since that judge *was* competent (trying the case as a single-judge tribunal for a minor offense) and the only flaw in that verdict was a reference to the wrong procedural code – a formal lapse that did not prejudice the defendant³³. By **rewinding the process** to after the original judgment, the Supreme Court protected the defendant's right to a proper appeal. It noted this remedy ensures the parties can now “*impugnar... mediante la vía predeterminada en la ley procesal aplicable*” – file the correct appeal as the law dictates^{39 35}.

Implications: This precedent powerfully reaffirms **due process and the hierarchy of courts**. It signaled that any judgment issued by a court lacking subject-matter or functional jurisdiction is essentially void, since accepting such rulings would “*hacer de lado el debido proceso*” (set due process aside)⁴⁰. The case is now a reference point to prevent **jurisdictional mistakes**: lower courts in El Salvador are cautious not to assume roles beyond their legal competence, and litigants are reminded to use the proper appeal routes. Furthermore, the ruling highlights the Supreme Court's commitment to **fair trial guarantees** – even if it

means undoing multiple years of proceedings to safeguard the right to be heard by the correct tribunal. Legal commentators noted that this decision aligns with Inter-American human rights standards (e.g., the *Mohamed vs. Argentina* case, cited by the Court) requiring that appeals in criminal cases be heard by the appropriate higher tribunal ⁴¹. The full text of the Sala's resolution (in Spanish) can be accessed via the judicial documentation center ²⁹ ³².

Civil and Family Law Landmark Cases

Modification of Child Custody and Support – *Divorce Decree Appeal (Sala de lo Civil, 2014)*

Court & Year: Supreme Court, Sala de lo Civil (Civil Chamber, handling family matters), 2014.

Facts: In a divorced couple's case, the mother sought to **modify the original custody/visitation arrangement and the child support amount** set in the divorce judgment. She argued that circumstances had changed: the mid-week visits with the mother were allegedly causing the school-age child scheduling problems, and the existing support (about \$60/month, set in a prior proceeding) was insufficient for the children's needs ⁴² ⁴³. Specifically, she claimed the Tuesday/Thursday visits disrupted homework and meals, and that the children's expenses totaled over \$2,200 while the mother's financial situation had worsened ⁴⁴ ⁴³. The trial court granted some modifications, so the non-custodial parent (mother, in this case) appealed, contesting the change in visitation and the increased support.

Legal Issues: What are the **requirements to modify a final family court judgment** regarding custody (visitation schedule) and child support? The case turned on the need to prove a **material change in circumstances** affecting the child's well-being or the parents' financial capacity since the original divorce order. It also touched on the burden of proof in family law modifications and the principle of the **best interest of the child**.

Decision: The Supreme Court (Civil Chamber) **revoked the modifications** and **denied the requested changes** to visitation and support, due to insufficient evidence of any substantial change ⁴⁵ ⁴⁶. The effect was that the original divorce decree's terms remained in force.

Reasoning: The Court explained that while family judgments (custody, visitation, support orders) can be modified if circumstances evolve, the party seeking modification **must prove the alleged changes** (Family Code Art. 259) ⁴⁵ ⁴⁷. Here, the father (custodial parent) failed to demonstrate that the mid-week visits with the mother were harming the child. There was **no evidence** that the child's education or routine truly suffered beyond normal inconvenience ⁴⁵. Likewise, on the support increase: the petitioner did not provide reliable proof of the mother's current income or the exact new needs of the children ⁴⁸ ⁴⁹. The ruling stressed that "*los hechos afirmados deben ser demostrados*" – the facts alleged (e.g. higher costs, mother's ability to pay) **must be proven by the one who asserts them** ⁵⁰ ⁵¹. Citing prior jurisprudence, the Sala de lo Civil noted that this burden of proof reflects the auto-responsibility of parties: if you claim the other parent's finances improved or the child's expenses increased, you must bring evidence (pay stubs, bills, etc.), or the court cannot alter the status quo ⁵² ⁵³. In this case, key evidence was missing – for example, the father alleged the mother had stopped paying the \$60 support and that the children's expenses were \$2,230, but he **did not substantiate** the mother's income or provide a clear breakdown of needs ⁵⁴ ⁵⁵. Without such proof, the Court held it would be speculative to raise the obligation ⁴⁹. It emphasized that denying the increase did **not absolve** the mother of her existing duty – the original support order remained, and if she failed to pay, the children could enforce it through legal means ⁵⁶. Regarding visitation, the Court found no demonstrated "*perjuicio*" (harm) to the child under the current arrangement ⁴⁵. It reminded that maintaining a close relationship with the non-custodial parent is generally beneficial, in line with the child's integral development and right to family life ⁵⁷ ⁵⁸. In sum, because the father **failed to meet the legal thresholds** for modification (clear evidence of changed

conditions and harm/benefit to the child), the petition was denied.

Implications: This case set an important precedent on **post-divorce modifications** in El Salvador. It underscored that final orders for custody or *cuota alimenticia* (support) are **not easily altered** – courts require a strong evidentiary showing that circumstances have materially shifted in ways that affect the child's best interests ⁵⁹ ⁶⁰ . The decision is often cited for the principle that the **"interés superior del niño"** (best interest of the child) does not automatically mean any requested change is granted – rather, stability is favored unless convincing proof of need for change is presented. It also illustrates the evidentiary rigor in family cases: even though strict rules of evidence are relaxed to some extent in family proceedings, a parent's sole testimony or uncorroborated claims usually won't suffice to modify a judgment ⁶¹ ⁶² . This ensures fairness to both parents and prevents tactical or unfounded modifications. The case thus provides guidance to family judges and practitioners that **detailed proof of new developments** (e.g. receipts, expert evaluations of a child's condition, documented income changes) is necessary to reopen settled family arrangements ⁵⁰ ⁴⁹ . (Full text of the Court's resolution is available in Spanish ⁴⁵ ⁶³ .)

Loss of Parental Authority for Abandonment – *Sala de lo Civil, 2015 (Cámara de Familia Appeal)*

Court & Year: *Cámara de Familia* of the First Section (San Salvador), with final review by the Supreme Court's Civil Chamber, 2015.

Facts: A mother filed for **divorce and demanded the termination of the father's parental authority** (*autoridad parental*, akin to parental rights) over their 3-year-old son, on grounds of the father's *abandono injustificado* (unjustified abandonment). She alleged the parents had been separated since March 2012 and that the father had **ceased all contact and support** for the child since May 2013 ⁶⁴ ⁶⁵ . In the same case, she requested sole custody, a child support order of \$1,669.67 per month (covering 100% of the child's expenses), and even **moral damages** for herself and the child, due to the father's neglect ⁶⁶ ⁶⁷ . The father did not timely answer the lawsuit and was noted as essentially defaulting, though he later agreed not to contest the divorce itself ⁶⁸ . The trial court granted the divorce (on ground of separation over a year) and ordered some support, but **refused to strip the father's parental authority**, finding the strict standard for abandonment not met. The mother appealed that refusal.

Legal Issues: Under Family Code Art. 240(2°), a parent can lose *autoridad parental* for "*abandono*" of a child without justification ⁶⁹ . The issue was what constitutes "abandonment" sufficient to permanently sever a parent's rights. The law does not define it precisely for this purpose, so courts look for a **total abdication of parental duties** (support, contact, care) and a malicious disregard for the child ⁷⁰ ⁷¹ . The case tested how rigorously the evidence must show intentional abandonment versus mere failure to pay support or sporadic visitation. It also raised the child's right to maintain a relationship with both parents (family unity) versus protecting the child from a parent's indifference. Additionally, the appeal addressed the linked issues of setting a proper support amount and whether moral damages can be awarded in such family cases.

Decision: The appellate tribunal (Family Chamber, with the Supreme Court's endorsement) **denied the request to terminate the father's parental authority**, upholding the lower court's finding that the father's conduct, while negligent, did not meet the stringent definition of legal abandonment in a way that warranted the ultimate sanction ⁷² ⁷³ . The Court maintained **joint parental authority**, granting the mother sole physical custody but preserving the father's rights to partake in the child's life ⁷⁴ . It also **confirmed the denial of moral damages** (finding no proof justifying them) ⁷⁵ , and it adjusted the child support: setting a definitive monthly support of **\$500** (based on the father's offer and capacity) rather than the exorbitant amount sought ⁷⁶ ⁷⁷ . All interim measures were made final (visitation schedule, etc.), and an existing administrative support order was superseded to avoid double payments ⁷⁸ ⁷⁹ .

Reasoning: The Court conducted a careful analysis of "abandonment." It noted there is *no explicit legal*

definition in Art. 240, so it looked analogously to the definition of abandonment for adoption (Family Code Art. 182) and scholarly doctrine ⁸⁰ ⁷¹ . **Abandonment**, the Court explained, is not merely falling behind on some duties; it is **“the total abdication”** of parental obligations – a **complete lack of support, contact, and care**, arising from willful indifference ⁷¹ ⁸¹ . Occasional lapses or irregular fulfillment don’t qualify; the conduct must amount to *absolute desertion* of the child’s material, emotional, and moral needs ⁷¹ ⁸¹ . In this case, while the father had not been involved for about 1.5 years, the evidence left **doubts** about whether this was entirely unjustified or permanent ⁷² . The mother alleged he cut off contact, but it wasn’t clear if she herself impeded some visits or if the father might resume involvement if given the opportunity ⁸² . The Court emphasized modern child-protection doctrine (LEPINA law) which urges that **parents not be definitively cut off from their children unless it’s truly harmful** ⁸³ ⁷² . Since it was not “fehacientemente” proven that the father *intended* to abandon the child maliciously – for example, there was no showing that he refused contact despite opportunities – the **benefit of the doubt** swung toward preserving the child’s legal relationship with his father ⁷² ⁸⁴ . The Court stated that if uncertainty exists, the solution that best guarantees the child’s rights is to **keep the paternal link** (the child has a right to a father figure) ⁷² ⁸⁵ . Therefore, it left *autoridad parental* jointly in place, meaning the father retained legal parental status (though the mother would exercise day-to-day care) ⁷⁴ . On the support issue, the Court found the mother’s demanded \$1,669.67/month unrealistic. Salvadoran law requires **both parents to contribute in proportion to their abilities** ⁷⁶ ⁸⁶ . Given the child was very young (3) and the father’s income was higher than the mother’s, the Court saw \$500 as reasonable and sufficient for now ⁷⁸ . It noted that a support amount must be within the payer’s capacity to ensure it can and will be paid – an impractically high order benefits no one if it leads to nonpayment ⁷⁷ ⁸⁷ . Finally, the Court pointed out that orders on custody, support, and visitation **do not cause res judicata** (“no causan estado”) – they can be revisited if circumstances change (Family Code Art. 259), which means if the father’s involvement or the child’s needs evolve, the mother could seek adjustments in the future ⁸⁸ ⁸⁹ .

Implications: This case is cited as a guiding precedent on **parental authority termination**. It set a high bar for invoking *abandono*: family judges in El Salvador now require clear and convincing evidence of **prolonged, willful neglect** before ending a parent’s rights ⁷⁰ ⁷¹ . The ruling reinforces the principle of **family unity** and the child’s right to maintain bonds with both parents, reflecting international standards that severing parental rights is a last resort. Legal scholars have noted this decision’s alignment with the idea that the child’s welfare generally favors **continued parental contact**, even if one parent has been delinquent, unless that parent’s involvement is affirmatively detrimental. Practically, the case has influenced how courts handle absentee parents – encouraging use of intermediate measures (like supervised visitation or enforcement of support) rather than outright termination except in egregious cases. It also highlighted that **child support must be set at realistic levels** and that interim measures (like provisional support or visitation arrangements) should ultimately be formalized in the final judgment rather than left “cautelar” (temporary) ⁹⁰ . In sum, the decision balances holding parents accountable (the father was still obliged to pay support and could face enforcement) with protecting the child’s long-term interests in identity and support from both parents. (The full judgment in Spanish is accessible via the Supreme Court’s jurisprudence portal ⁷² ⁷³ .)

Evidence Requirements in Domestic Violence Cases – Sala de lo Civil (Violencia Intrafamiliar Appeal, 2014)

Court & Year: Supreme Court, Sala de lo Civil, 2014 (reviewing a Family Court’s ruling on intrafamilial violence).

Facts: A woman filed a complaint of **domestic violence** (*violencia intrafamiliar*) against her husband, alleging psychological, physical, and economic abuse. During the proceedings, **protective measures** were

initially ordered (as is common under El Salvador's Domestic Violence Act, *Ley contra la Violencia Intrafamiliar* or LCVI). However, by the time of the **final judgment**, the trial court found insufficient proof to hold the husband liable and acquitted him. The wife appealed, seeking to have the appellate court recognize that the domestic violence did occur and attribute responsibility to the husband ⁹¹ .

Legal Issues: The core issue was the **quantum and quality of proof required to establish domestic violence** in a court proceeding. Domestic abuse often happens in private, so direct evidence can be scarce. The question was whether the victim's testimony alone could sustain a finding of violence, or if corroboration was needed – balancing the victim's right to protection with the defendant's rights (presumption of innocence, due process). The case also touched on the difference between the evidentiary threshold for **issuing protection orders (lower)** versus for a **definitive finding of violence (higher)** ⁹² ⁹³ .

Decision: The Sala de lo Civil (acting as final appellate reviewer) **agreed with the lower courts** that the evidence was inadequate and **upheld the dismissal** of the domestic violence claims. Essentially, the husband remained absolved due to lack of proof beyond the wife's statements ⁶¹ ⁶² .

Reasoning: The Court made an important distinction: At the initial stage, **protective measures** (like restraining orders) can be granted on a *prima facie* showing – the law allows judges to act quickly with “verosimilitud” (plausibility) to prevent harm ⁹² ⁹³ . But when issuing a **final verdict attributing legal blame for domestic violence**, the judge must rely on the standard system of proof (*sana crítica* – reasoned evaluation of evidence) ⁹³ ⁹⁴ . In this case, by the final hearing the **only evidence on record was the wife's own testimony**, repeating the allegations from her initial complaint ⁹⁵ ⁹⁶ . Crucially, a household employee's testimony that had been offered at the start was not properly re-submitted in the main trial, and a child's testimony was excluded on procedural grounds ⁹⁷ ⁹⁸ . Thus, no third-party witness or additional proof was before the court – just the victim's account. The Sala noted that while Salvadoran law (Codigo Procesal Civil) does allow a party's testimony to have probative value, such “**declaración de propia parte**” is inherently subjective and must be weighed cautiously ⁹⁹ ¹⁰⁰ . The Court reasoned that a victim's lone testimony, uncorroborated by any other evidence, **may be insufficient to meet the burden of proof**, not because the victim is untrustworthy, but because there's no objective confirmation ¹⁰¹ ¹⁰⁰ . If the court were to convict solely on one party's unverified narrative, it would risk violating the defendant's **presumption of innocence and due process rights** ⁶¹ ¹⁰² . The judgment explicitly acknowledged the reality that domestic violence often occurs behind closed doors, making evidence gathering difficult ¹⁰³ . Nonetheless, it held that *some* form of corroborating evidence or indication is needed – be it witness testimony, physical evidence, medical reports, prior complaints, etc. – to satisfy legal standards ⁶¹ ⁶² . In the case at hand, the wife could have, for example, re-summoned the domestic employee as a witness or gathered neighbors' testimony or other proof of injuries, but did not ¹⁰⁴ ¹⁰⁵ . Therefore, with only her word on record, the courts could not confidently attribute violence to the husband without creating a dangerous precedent of uncorroborated allegations outweighing the lack of defense evidence ⁶¹ ⁶² . The Court buttressed its reasoning by quoting its own 2004 precedent on the **burden of proof**: the party who asserts facts (here, the occurrence of abuse) bears the responsibility to prove them, and if they do not, the decision must go against that party ⁵² ⁵³ (even if this outcome is unsatisfying in a social sense).

Implications: This decision has been influential – and somewhat controversial – in Salvadoran legal circles. On one hand, it set a clear **evidentiary guideline**: in domestic violence trials, the victim's testimony should ideally be supplemented by other evidence, and judges must ensure the accused's rights are not overshadowed by the gravity of the allegations ⁶¹ ⁶² . The case is frequently cited in training materials for judges (e.g., a 2015 CNJ compilation on violence jurisprudence) to illustrate the importance of thorough evidence collection in family-violence cases ¹⁰⁶ ¹⁰⁷ . On the other hand, women's rights organizations like ORMUSA have critiqued this strict approach, arguing it places a heavy burden on victims who may have few means to get independent evidence of abuse ¹⁰⁷ ¹⁰⁸ . Nonetheless, the precedent stands: Salvadoran courts require “**prueba fehaciente**” (reliable proof) of the alleged abuse – such as witness testimony,

medical reports of injuries, police reports, or any contemporaneous evidence – before issuing a definitive finding of intrafamilial violence ¹⁰⁹ ¹¹⁰ . The ruling also underscores that while protective orders can be issued on a lower threshold (to safeguard victims quickly), the **final judgment** demands full evaluation under *sana crítica* rules ⁹² ⁹³ . This two-tier approach attempts to balance immediate protection with long-term fairness. In practical terms, the case has encouraged better evidence preservation in domestic violence incidents (for example, encouraging victims to seek medical exams or report to authorities promptly so that evidence is recorded). It also highlights the importance of legal counsel in such cases to ensure all possible evidence is presented by the time of trial. The full Spanish text of this jurisprudence can be found via the Supreme Court's documentation site ⁶¹ ¹⁰¹ .

Inheritance Rights and Heirship Categories – *Sala de lo Civil, 2002 (Casación in a Succession case)*

Court & Year: Supreme Court, Sala de lo Civil, 2002.

Facts: This case involved a **dispute over an inheritance**. After a family member died, a woman (let's call her María) took possession of certain estate assets, believing herself entitled. However, the decedent's other relatives (siblings of the deceased) contested her actions, leading to a legal action about the rightful heirs. María was not formally declared an heir initially, yet she acted as one. The key issue turned on whether she could claim the inheritance through **adverse possession (prescripción adquisitiva)** by having possessed the assets for an extended period, or whether the law required deferring to the formally declared heirs. The first-instance court had recognized María's **ordinary acquisitive prescription** of the inheritance after 10 years of uninterrupted possession, essentially validating her as the owner of those assets ¹¹¹ ¹¹² . The appellate court (a Civil Chamber) reversed that, opining that because María was actually a blood relative (and thus a *true heir* by law alongside the siblings), she could not use prescription in the same way a *putative or apparent heir* could. The appellate judges categorized heirs into "verdaderos herederos" (true legal heirs) versus "herederos putativos o aparentes" (putative/apparent heirs who act as heirs but lack legal title), and held that only the latter could invoke prescriptive acquisition if they possessed in good faith ¹¹³ ¹¹⁴ . They declared María's claim inadmissible and dismissed her suit as improperly directed, since in their view she wasn't an outsider but a co-heir who hadn't been formally recognized. María sought cassation, arguing the law was misinterpreted.

Legal Issues: The case revolved around **inheritance law and acquisitive prescription** – specifically, who can acquire inheritance property by possession. It required interpreting Civil Code provisions on succession and the procedural rules for heir declaration. At stake was the distinction between different classes of heirs: - a) *heir with legal right* (e.g., a blood relative) who hasn't been declared but is in possession, - b) *putative heir* (someone who genuinely but mistakenly believes they are heir and acts as such), and - c) *apparent heir* (someone who acts as heir without legal basis).

The question was whether a true heir in possession must still go through formal declaration, or if after a certain time they can acquire title by prescription, and conversely, whether the lack of formal heir status allows prescription like any third party. Also, whether the appellate court exceeded the scope of appeal by raising issues not appealed (a procedural aspect).

Decision: The Supreme Court in cassation **overturned the appellate ruling**, siding with María. It rejected the notion that a *true heir* is categorically barred from claiming via prescription. The Court clarified the law: even a rightful heir who wasn't formally declared can acquire property by adverse possession if the statutory conditions are met. It found the appellate court had erred by excluding "verdaderos herederos" from using ordinary prescription, an interpretation inconsistent with the Civil Code ¹¹³ ¹¹⁵ . The case was remanded for proper adjudication under the correct legal standard (or the Supreme Court itself may have rendered the final decision on the merits—sources suggest the Sala de lo Civil proceeded to resolve the

case, declaring prescription in María's favor) ¹¹¹ ¹¹² .

Reasoning: The Sala de lo Civil's analysis delved into **19th-century and modern Civil Code provisions** on succession. Under the older civil code (in force in El Salvador until updates in the 1990s), an heir's possession of inheritance could lead to ownership if uninterrupted for a period (traditionally 30 years for extraordinary prescription, but less if considered an ordinary possessor with just title). The Court explained the concept of "*heredero putativo*" or "*aparente*": someone who acts as heir *in the absence of a declared heir* ¹¹⁶ ¹¹⁷ . Salvadoran jurisprudence had identified three types of heir status ¹¹³ ¹¹⁴ : **(a)** the *putative heir* – one who exercises heir acts in good faith but hasn't been legally recognized; **(b)** the *apparent (false) heir* – one who is not truly entitled but through error or fraud is treated as heir; and **(c)** the *true heir* – the legitimate heir by blood or will. The appellate court thought María fell in category (c) along with the siblings, so she couldn't claim prescription, since prescription was seen as a defense for a putative heir against a true heir's claim ¹¹⁸ ¹¹⁹ . The Supreme Court disagreed with that rigid approach. It reasoned that **all heirs, even true ones, must be declared through the judicial or notarial succession process** to have their rights fully recognized ¹²⁰ ¹²¹ . If someone (like María) who is an heir by law isn't declared and nonetheless possesses the estate as if owner for the required time, denying her the ability to assert acquisitive prescription would be unjust if the other heirs slept on their rights. The Court cited the principle of "*justo título*" and good faith – if María genuinely believed her status and possessed openly, it aligned with the rationale for prescription (to stabilize long uncontested possession) ¹²² ¹¹⁶ . Moreover, after certain reforms, the law eliminated the need for an heir to formally accept inheritance (no "aceptación de herencia" needed as a separate act), meaning the scenario of putative vs true heir had evolved. The Sala also admonished the appellate judges for possibly overstepping the bounds of appeal by introducing arguments that were not raised by the parties (the concept of inept demand due to heir status), violating the rule that an appeals court shouldn't substitute its own issues beyond the *agravios* expressed ¹²³ ¹²⁴ . In sum, the Supreme Court corrected the misinterpretation of Arts. 1191 and 2251 of the Civil Code: it was wrong to say ordinary prescription applies "only to putative heirs and not true heirs" ¹¹³ ¹¹⁵ . Instead, any person in possession (even a legal heir) can acquire rights if the conditions are met, unless specific exceptions apply.

Implications: This decision became a **touchstone in Salvadoran succession law**, clarifying heirship doctrines. It confirmed that **legal heirs are not precluded from asserting prescriptive acquisition** simply by virtue of their status – a point that ensures fairness in cases where inheritance issues linger for years. The case also underscored the need for timely initiation of succession proceedings: if the rightful heirs do nothing while someone holds the property for a decade, the law's interest in certainty may favor the possessor. Additionally, the ruling educated on the categories of heirs in jurisprudence and is frequently referenced in legal literature about inheritance (even beyond El Salvador's borders, as the concepts are rooted in civil law tradition) ¹²⁵ ¹²⁶ . Academics from the Universidad de El Salvador and others have cited this case when discussing how **possession in inheritance** is treated in Salvadoran jurisprudence ¹²⁷ ¹²⁸ . Practically, it has influenced how attorneys frame cases: a person in María's situation can confidently claim their long possession as a defense against late-coming co-heirs. Meanwhile, true heirs are encouraged to formalize their rights promptly. The case also reinforced appellate procedure principles – warning second-instance courts not to go beyond the issues on appeal, lest they be seen as deciding *ultra petita* (beyond what was asked) ¹²⁹ ¹²⁴ . Overall, this precedent protects both the stability of possession and the integrity of the succession process. (The full text of the Sala de lo Civil's judgment, in Spanish, is available through the judicial documentation archives ¹¹³ ¹¹⁴ .)

Sources: The cases above are drawn from official Salvadoran case law repositories, including the Corte Suprema de Justicia's *Centro de Documentación Judicial (CENDOJ)*, which provides full-text decisions ¹⁷ ²⁹ . Additional analysis was obtained from academic commentary and compilations of jurisprudence ²² ¹²⁶ . Each decision (resolución) cited reflects a **landmark interpretation** by El Salvador's highest courts (Sala de

lo Penal for criminal matters; Sala de lo Civil or specialized Family Chambers for civil/family matters), shaping the country's legal landscape in the areas of criminal justice and family law. The full Spanish texts of these decisions can be accessed via the Supreme Court's online jurisprudence portal for those seeking more detail on the courts' legal reasoning ¹⁷ ⁶¹ .

¹ ² **152C2020**

<https://www.jurisprudencia.gob.sv/DocumentosBoveda/D/1/2020-2029/2020/05/DFAD7.PDF>

³ ⁴ ⁵ ⁶ ⁷ ⁸ ⁹ **jurisprudencia.gob.sv**

<https://www.jurisprudencia.gob.sv/ddj/wp-content/uploads/2024/10/InSalaPenal2021.pdf>

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<https://www.jurisprudencia.gob.sv/DocumentosBoveda/D/1/2010-2019/2019/08/D6B8A.PDF>

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<https://www.jurisprudencia.gob.sv/DocumentosBoveda/E/1/2010-2019/2015/12/B6546.HTML>

¹⁰⁶ **[PDF] Líneas y Criterios Jurisprudenciales en Violencia Intrafamiliar**

<https://www.cnj.gob.sv/images/documentos/pdf/ecj/publicaciones/ViolenciaIntrafamiliar.pdf>

¹⁰⁷ **[PDF] COMPILACION Y ANALISIS DE CRITERIOS ... - ORMUSA**

<https://ormusa.org/wp-content/uploads/2021/07/CompAnalisisCritJurisVidaLibreViolenciaMujeres-CSJ.pdf>

¹⁰⁸ **Proceso de Violencia Intrafamiliar (Corte Suprema de Justicia)**

<https://sv.vlex.com/source/corte-suprema-justicia-salvador-6400/c/proceso-de-violencia-intrafamiliar>

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<https://www.jurisprudencia.gob.sv/DocumentosBoveda/D/1/2000-2009/2002/08/1F4F4.PDF>

¹²⁶ **través de la declaratoria de heredero correspondiente.**

<https://www.jurisprudencia.gob.sv/DocumentosBoveda/E/1/2010-2019/2011/01/8D683.HTML>

¹²⁷ ¹²⁸ **el derecho de sucesiones en su jurisprudencia casatoria**

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